

HOUSE No. 4192

The Commonwealth of Massachusetts

PRESENTED BY:

Nicholas A. Boldyga and Paul W. Mark

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the election and composition of the conservation commission within the town of Southwick.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Nicholas A. Boldyga</i>	<i>3rd Hampden</i>	<i>6/6/2025</i>

HOUSE No. 4192

By Representative Boldyga of Southwick and Senator Mark, a joint petition (accompanied by bill, House, No. 4192) of Nicholas A. Boldyga (by vote of the town) relative to the election and composition of the conservation commission in the town of Southwick. Municipalities and Regional Government. [Local Approval Received.]

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 4506 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the election and composition of the conservation commission within the town of Southwick.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. (a) Notwithstanding section 8C of chapter 40 of the General Laws or any
2 other general or special law to the contrary, the conservation commission of the town of
3 Southwick shall consist of 7 members. Four members of the commission shall be appointed by
4 the town select board and 3 members of the commission shall be elected by the voters at the
5 annual town election. All members of the conservation commission shall reside in the town of
6 Southwick and be registered voters of the town therein.

7 (b) Each member of the commission shall serve for a 3-year term or until a member no
8 longer serves on the commission, as set forth in this act, whichever is earlier.

9 (c) Should any of the commissions, boards or authorities who or which have appointing
10 authority under this act be no longer in existence for whatever reason, that position that would
11 have been appointed shall thereafter be elected by the voters at the annual town election and shall
12 reside in the town of Southwick and be a registered voter in the town.

13 (d) The select board may remove any member of the commission for cause after a
14 hearing.

15 (e) Any vacancy occurring on the commission from any cause shall be filled for the
16 remainder of the unexpired term by the select board, such appointment shall be made not less
17 than 21 days following notice of such vacancy.

18 (f) Any vacancy occurring in 1 of the positions elected by the voters, pursuant to
19 subsection (a), shall be filled by an appointment by the town select board until the next annual
20 town election where the vacant position on the conservation commission shall be available on the
21 ballot and shall be filled by the election of the registered voters of the town of Southwick for the
22 balance of the unexpired term, if any, otherwise for the new term.

23 SECTION 2. Notwithstanding subsection (b) of section 1 of this act, the initial terms of
24 the 3 members elected by the voters at the next annual town election shall be: (i) 1 person for a
25 1-year term; (ii) 1 person for a 2-year term; and (iii) 1 person for a 3-year term. Thereafter, these
26 members shall be elected for 3-year terms at the annual town election.

27 SECTION 3. This act shall take effect upon its passage.